

United States Court of Appeals
for the
Eleventh Circuit

AMERICAN SECURITIES ASSOCIATION and CITADEL SECURITIES LLC,

Petitioners,

— v. —

UNITED STATES SECURITIES AND EXCHANGE COMMISSION,

Respondent.

PETITION FOR REVIEW OF AN ORDER OF THE SECURITIES AND
EXCHANGE COMMISSION RELEASE NO. 34-105003; FILE NO. 4-698

**MOTION OF PTG MARKETS TO FILE BRIEF AS
AMICUS CURIAE IN SUPPORT OF PETITIONERS**

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**CERTIFICATE OF INTERESTED PERSONS
AND CORPORATE DISCLOSURE STATEMENT**

Pursuant to Federal Rule of Appellate Procedure 26.1 and Eleventh Circuit Rule 26.1-2, the undersigned counsel certifies that, in addition to the persons and entities listed in the certificate of interested persons filed by the parties, the following persons and entities have an interest in the outcome of this appeal:

PTG Markets (Amicus Curiae);

Showalter, Michael J. (Counsel for Amicus Curiae PTG Markets);

Showalter PLLC (Counsel for Amicus Curiae PTG Markets).

Pursuant to Federal Rule of Appellate Procedure 26.1, the undersigned counsel certifies that no parent corporation and no publicly held corporation has a 10% or greater ownership interest in PTG Markets.

By: /s/ Michael J. Showalter
Michael J. Showalter

Dated: May 28, 2026

IN THE UNITED STATES COURT OF APPEALS
FOR THE ELEVENTH CIRCUIT

AMERICAN SECURITIES ASSOCIATION and CITADEL SECURITIES LLC,

Petitioners,

v.

No. 26-10936

UNITED STATES SECURITIES AND EXCHANGE COMMISSION,

Respondent.

**MOTION FOR LEAVE TO FILE BRIEF AS AMICUS CURIAE
IN SUPPORT OF PETITIONERS**

Amicus curiae PTG Markets respectfully moves for leave to file the attached brief as amicus curiae in support of Petitioners. All parties except Respondent the Securities and Exchange Commission have consented to the filing. Counsel for PTG Markets requested the Commission's position several times by email and received no response. In support of its motion, PTG Markets states the following.

This Court has authority to permit amicus filings under Federal Rule of Appellate Procedure 29 and Eleventh Circuit Local Rule 29. Amicus briefs assist the Court "in cases of general public interest by making suggestions to the court, by providing supplementary assistance to existing counsel, and by [e]nsuring a complete and plenary presentation of difficult issues so that the court may reach a proper decision." *Mobile Cty. Water, Sewer & Fire Prot. Auth., Inc. v. Mobile Area*

Water & Sewer Sys., Inc., 567 F. Supp. 2d 1342, 1344 n.1 (S.D. Ala. 2008) (internal citation omitted), *aff'd*, 564 F.3d 1290 (11th Cir. 2009).

PTG Markets has a direct and substantial interest in this matter. PTG Markets is a nonprofit trade association whose members are principal trading firms, *i.e.*, broker-dealers and other professional traders that trade their own capital, rather than the capital of customers, on exchanges and other regulated markets. Its members are “Industry Members” within the meaning of the Consolidated Audit Trail National Market System Plan, and they are the firms on which the Securities and Exchange Commission’s 2026 CAT funding order falls almost entirely. PTG Markets’s predecessor entity, the FIA Principal Traders Group, appeared as amicus in the prior round of CAT-funding litigation that produced this Court’s decision in *American Securities Association v. SEC*, 147 F.4th 1264 (11th Cir. 2025). PTG Markets also submitted a comment letter during the rulemaking that produced the 2026 Order, and the Commission cited that letter in the Order itself. *See* 91 Fed. Reg. 13410, 13412 n.32 (2026).

The attached brief offers perspectives that no party can supply. Principal trading firms have no customer base over which to spread CAT-related costs and therefore absorb directly whatever portion of the system’s expenses the SROs route to Industry Members. The brief explains how that cost incidence sharpens the statutory-authority, Exchange Act, and reasoned-decisionmaking concerns

Petitioners raise, and how the 2026 Order revives the defects this Court already condemned in *American Securities Association*.

For the foregoing reasons, PTG Markets respectfully requests that this Court grant leave to file the attached Brief of Amicus Curiae in Support of Petitioners.

Dated: May 28, 2026

Respectfully submitted,

/s/ Michael J. Showalter
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CERTIFICATE OF COMPLIANCE

I certify that this motion complies with the type-volume limitation of Federal Rule of Appellate Procedure 27(d)(2)(A) because, according to the word-processing software's word count, there are 411 words in the applicable sections of this motion. I also certify that this motion complies with the typeface and type-style requirements of Federal Rules of Appellate Procedure 27(d)(1)(E), 32(a)(5), and 32(a)(6). The motion was prepared in 14-point Times New Roman font.

/s/ Michael J. Showalter
Michael J. Showalter

CERTIFICATE OF SERVICE

I hereby certify that on May 28, 2026, a true and correct copy of the foregoing was filed with the Clerk of the Court using the CM/ECF system, which will automatically send email notification of such filing to all attorneys of record who are registered participants in the Court's electronic notice and filing system.

/s/ Michael J. Showalter
Michael J. Showalter